

The complaint

Mr and Mrs P are unhappy that Lloyds Bank General Insurance Limited (Lloyds) declined their claim for a storm-damaged bay window.

The buildings insurance policy was held in joint names but, for ease, I'll refer to Mr P throughout my decision.

What happened

Mr P claimed under his home insurance with Lloyds for storm damage to his roof and bay window. Lloyds assessed the damage remotely and concluded that neither area was damaged by subsidence. Mr P complained because he hadn't claimed under the subsidence peril.

Lloyds reconsidered the claim and agreed that the roof was storm damaged. It paid Mr P a cash settlement in line with his invoice for work done, along with compensation in recognition of its error.

But Mr P was unhappy that Lloyds hadn't also covered the bay damage. His expert provided a report saying the storm caused shock to the building. Lloyds said the bay was already damaged and the storm had only highlighted the issues. So, Lloyds didn't think it was responsible for the bay window damage, though it offered further compensation for the shortfalls in its handling of the claim.

Our investigator didn't uphold the complaint. They thought Lloyds had fairly settled the roof damage claim, but didn't think the evidence confirmed the damage to the bay was caused by a storm.

Mr P didn't agree, and he referenced the details in both his and Lloyds' expert reports. He also repeated much of his original complaint and asked for the bay to be settled under the policy.

The complaint was passed to me to decide.

What I've decided – and why

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint.

While I realise this is not what Mr P would've hoped for, I've decided not to uphold his complaint. I'll explain why.

Firstly, I note that Mr P would like me to comment on every piece of evidence. There's a lot of information and I've looked at it all, but it would be disproportionate to comment on every single piece of evidence. Our rules don't require me to and I don't think it would be of any significant benefit. I'd like to reassure both parties that I've considered everything, but my decision will be about the complaint as a whole, with reference to evidence where I think it helps explain.

Roof

Mr P accepted Lloyds' cash settlement to cover his costs for repairing the roof, its offer of interest, and compensation for the distress and inconvenience caused. I've considered the settlement and I'm satisfied that it's fair and reasonable. That's because it reimburses Mr P for the full cost of his roof repairs and acknowledges that it didn't engage a roofing specialist to assess the claim. Therefore, I won't consider this issue further.

Bay Window

The remaining issue, then, is that Mr P is unhappy that Lloyds hasn't carried out a storm damage assessment for his bay window claim. He says Lloyds relied on a subsidence report.

Lloyds said there was no evidence of damage caused by any insured peril.

I know Mr P is aware of the three questions I consider when looking at storm damage complaints, but I'll repeat them here for completeness:

- Was there a storm when the damage happened?
- Is the damage consistent with that typically caused by a storm?
- Was the storm the sole or main cause of damage?

Was there a storm?

This issue is not in dispute. There were three named, well-publicised storms in a short period of time when Mr P's home was damaged. Therefore, I'm satisfied that the answer to this question is yes.

Is the damage consistent with that typically caused by a storm?

Mr P's bay window structure is unstable, and his expert thinks the shock of the storm caused the damage. Lloyds doesn't agree and thinks the cause is a construction issue.

A storm would typically dislodge the roof rather than affect the underlying structure of the bay window. But, I don't doubt that evidence of the structural issue became apparent during the storm. Therefore, I'll move on to consider the final question.

Was the storm the sole or main cause of the damage?

Mr P doesn't think it's reasonable to rely on the subsidence report because his claim was for storm damage. As with the roof issue, he says Lloyds hasn't assessed his claim against the peril under which he was claiming.

Although Lloyds commissioned a subsidence report, the expert identified the cause of the damage as movement away from the house but confirmed it was more of a connection issue. The subsequent expert report said there was evidence of historic distortion but no indication that an insured peril had caused it.

Mr P's expert reported that the distortion wasn't realigned after underpinning works many years earlier, but the property remained fit for purpose. The expert concluded that the storm placed shock on the building causing damage to the roof and bay area, leaving the bay no longer fit for purpose.

Here, Lloyds has identified the cause rather than trying to decide whether the damage is typical of that caused by a storm. While the report was for subsidence, it does confirm that the damage is an ongoing issue and not related to an insured peril. Had the expert considered the damage to be storm-related, then I'd have expected that to be reported regardless.

Having considered Mr P's expert opinion alongside Lloyds', I'm of the view that Lloyds has reached a fair decision in respect of the bay. That's not to say that the storm didn't cause some damage. However, sometimes storms simply reveal damage that was already there, which appears to be the case here. A well-maintained property should withstand all but the most severe weather conditions, and the evidence suggests that there was an existing ongoing problem which simply allowed the storm to identify the weak point of the house.

I see Lloyds acknowledged its shortfall when its contractor declined to inspect for storm damage. But that doesn't mean it can't exclude the storm as a cause of damage. As I've already explained, while looking into the issue of subsidence, Lloyds identified the cause of the damage, which wasn't the storm. So, a further survey to inspect the damage against the storm peril wouldn't have changed that.

Turning now to the comments Mr P's expert made more recently, he said Lloyds confirmed significant damage by storm in its letter of 7 January. He also said that extended to the upper bay roof area. Looking at the 7 January findings, it's clear Lloyds accepted that there was likely to be storm damage to the roof. I've addressed that at the beginning of my decision. But I haven't seen anything to indicate that Lloyds agreed there was storm damage to the bay. Its earlier letter, dated 2 March, confirmed that the survey revealed no evidence of damage to the bay caused by an insured peril.

Therefore, I don't think the storm was the main cause of the damage, so I won't be asking Lloyds to settle the claim.

Compensation

Lloyds paid £750 compensation for both the roof and bay window issues. There's no dispute that Lloyds didn't handle this claim as well as it could've done. However, I think it has put matters right for the roof and I haven't seen any evidence to persuade me that the storm caused the bay window damage. Therefore, I'm satisfied that the compensation is fair and in keeping with what I would've required if Lloyds hadn't offered anything. I won't be asking Lloyds to increase its offer.

In summary, I accept that the storm will have contributed some damage to Mr P's home, but the evidence suggests that the bay was already distorted, and the storm simply revealed that weakness. I'm satisfied that Lloyds has settled the roof claim fairly and offered reasonable compensation in the circumstances. Therefore, I won't be asking Lloyds to do any more.

My final decision

For the reasons given above, my final decision is that I don't uphold the complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr P and Mrs P to accept or reject my decision before 13 September 2022.

Debra Vaughan
Ombudsman